or the Legislature, or any other person whom they might introduce into office, merely for that particular purpose").

The answer, then as now, is that these officers exercise the *President's* power, not their own, and thus must be *responsible* to him. We do not allow intrusions on Article I nor on Article III. See *INS* v. *Chadha*, 462 U. S. 919; *Stern* v. *Marshall*, 564 U. S. 462 (2011). We see no reason to allow intrusions on Article II either.

* * *

Our Constitution creates three branches, but only one President. That President is not all powerful—not by any means. See, *e. g.*, *Ex parte Milligan*, 4 Wall. 2 (1866); *Youngstown Sheet & Tube Co.* v. *Sawyer*, 343 U. S. 579 (1952); *United States* v. *Nixon*, 418 U. S. 683 (1974). But he is not impotent either. He and he alone is vested with "[t]he executive Power" of the United States. Art. II, § 1, cl. 1.

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To "discharg[e] the duties of his trust," the President must have the assistance of officers he can trust. 30 Writings of George Washington, at 334. Although it is up to the Senate to decide whether to confirm those with whom the President would *prefer* to work, neither Congress nor the courts may saddle him with those with whom he *cannot* work. Subordinates who exercise the President's power are subject to removal by him. Then, and only then, can they remain accountable to the President, and the President to the people.

The judgment of the United States District Court for the District of Columbia is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE GORSUCH, concurring.

To fulfill his constitutional duty to ensure the laws are faithfully executed, the Court holds, the President must have the ability to remove principal officers who exercise execu-

tive power in his name. That includes those who run independent agencies like the Federal Trade Commission (FTC). *Ante,* at 431. With all this, I agree.

But neither can I ignore the implications that follow. Today, independent agencies do not just exercise executive law-enforcement powers. Congress has also delegated to them vast legislative and judicial powers, effectively allowing these agencies to make laws and decide disputes under them. And, after today's decision, the President can effectively exercise all those powers too.

It's a development that raises important questions, not least these: Would Congress have delegated so much power, including legislative and judicial power, to independent agencies had it known that the President would come to control them? How will Congress respond now—if realistically it can? And what, if anything, will this Court do about it?

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I

A

Begin with how we got here. One strand of the story runs this way, and it starts in the academy. In the early 20th century, a group of scholars including Woodrow Wilson and James Landis came to the view that our "simple tripartite form of government" was "inadequa[te] . . . to deal with modern problems." J. Landis, The Administrative Process 1 (1938) (Landis). Really, they thought, our constitutional system had become "unworkable." F. Goodnow, Politics and Administration 14 (1900) (Goodnow); see also H. Laski, Authority in the Modern State 70–71 (1919).

To meet modern challenges, Wilson and others argued, American government needed to reorient itself around the goal of operating with the "utmost possible efficiency." W. Wilson, The Study of Administration, 2 Pol. Sci. Q. 197 (1887) (Wilson, Study of Administration). Impressed by the perceived competence of the Prussian bureaucracy, they called

on the Nation to stop "dogmatiz[ing] about the constitution of government." *Id.*, at 197–199 (emphasis deleted); see also *id.*, at 204, 217. In our changing world, they said, the project of "distinguish[ing] . . . between" legislative, executive, and judicial powers had to "g[i]ve way . . . to the exigencies of governance." Landis 1–2.

All told, Wilson and his followers argued for an entirely new model of "[p]ublic administration." Wilson, Study of Administration 212. To be sure, this model had its nuances, and its proponents their disagreements. But a few ideas were central to the project. First, new agencies needed to be created and staffed by scientific and technical "expert[s]" with the "technical skill" to translate "far-reaching . . . legislation into reality." Landis 25–26; *id.*, at 23–25 (emphasizing the "need for expertness").

Second, these experts had to be insulated from political control. As Wilson put it, the Nation's traditional commitment to "popular sovereignty" entrusted too much to a "selfish, ignorant, timid, stubborn, or foolish" people. Wilson, Study of Administration 207–208. And letting the public anywhere near the new bureaucracies would amount to letting "a rustic handl[e] delicate machinery." *Id.*, at 215; see also W. Wilson, Shorthand Diary, in 1 Papers of Woodrow Wilson 143 (A. Link ed. 1966) ("[U]niversal suffrage is at the foundation of every evil in this country"); cf. Goodnow 85.

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Finally, to fulfill their new responsibilities, politically insulated agency experts needed power. Lots of it. Much more than just executive authority to enforce the laws Congress writes. They also required authority over "legislative and judicial acts." W. Wilson, Notes for Lectures on Administration at the Johns Hopkins (1891), in 7 Papers of Woodrow Wilson 136 (A. Link ed. 1969) (Wilson, Notes). All told, they needed "legislative power," "executive power," and—while they were at it—"whatever power might be required to achieve the desired results." Landis 10; see also Wilson, Notes 138 (describing as "advantag[e]ous" the Prussian

"union . . . of legislativ[e], administrative, and judicial functions").

B

Influential as these ideas were, they met with some hard realities as they progressed from the academy into the halls of government. For an illustration, look no further than the FTC itself and the case at the center of today's dispute, *Humphrey's Executor* v. *United States*, 295 U. S. 602 (1935). Congress created the FTC in 1914 through legislation that by-then President Wilson signed into law. See ch. 311, 38 Stat. 717. In establishing the agency, Congress endowed it with considerable power both to define and prosecute "unfair methods of competition." *Id.*, at 719–720. And in the same breath, Congress insulated the agency's leadership from democratic control, at least to a degree: Once leaders were appointed by the President and confirmed by the Senate, Congress provided, the President could remove them only "for inefficiency, neglect of duty, or malfeasance in office." *Id.*, at 718.

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Even so, the notion that the FTC and agencies like it would be led by technical experts who would neutrally and scientifically chart the Nation's path soon began to look a bit "quaint." See E. Kagan, Presidential Administration, 114 Harv. L. Rev. 2245, 2261 (2001). Maybe that was because politicians remained in control of the appointment and confirmation processes. Maybe it was because they retained so many other ways to influence an agency's actions. Maybe it was because policymaking, even when performed by technical experts, almost always requires tradeoffs between competing values. Or maybe it was because of some combination of these and other factors. See N. Rao, Administrative Collusion: How Delegation Diminishes the Collective Congress, 90 N. Y. U. L. Rev. 1463, 1477–1484 (2015).

Whatever the causes, it didn't take long for the problem to surface. Just take William E. Humphrey. In 1925, about a decade after giving up his seat in Congress for a failed

Senate bid, he landed a job as one of the FTC's Commissioners. See G. Davis, The Transformation of the Federal Trade Commission, 1914–1929, 49 Miss. Valley Hist. Rev. 437, 445–448 (1962). It seems Humphrey's primary qualification for the job wasn't so much his technical expertise as his loyalty to the Republican party then holding the White House, along perhaps with his "close connection[s] with northwestern lumber interests, which had suffered the unfavorable publicity of [an FTC] investigation" in recent years. *Id.*, at 445.

If politics rather than neutral technical expertise landed Humphrey the job, they also soon made him a target for removal. Shortly after Democrats swept the election of 1932, President Franklin D. Roosevelt fired Humphrey. The President did not accuse him of inefficiency, neglect of duty, or malfeasance, the standard Congress had set for the removal of FTC Commissioners. See 38 Stat. 718. Nor does it seem the President was especially concerned with Humphrey's expertise (or lack of it). Instead, it appears that President Roosevelt could not tolerate the "adamant[ly] conservative" Humphrey holding influence over the FTC during "an important phase of the New Deal," and he wanted someone more sympathetic for the job. W. Leuchtenburg, The Case of the Contentious Commissioner: Humphreys' Executor v. U. S., in Freedom and Reform 305–306 (H. Hyman & L. Levy eds. 1967); see also *id.*, at 305 (reciting Humphrey's complaint that he had been fired for "'purely political reasons'" (quoting Letter from W. Humphrey to G. Norris (Oct. 4, 1933))).

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C

If the Wilsonian vision of agencies run by neutral experts began buckling under the weight of reality early on, another feature of the plan stuck. Those in charge of these new agencies often became very difficult to dislodge. Whether this result represented a faithful manifestation of the Wilsonian project or something else entirely poses an interesting question (political actors—like Humphrey—insulated

from politics?). But that is how things unfolded, and once again Humphrey was at the center of it all. So was this Court.

When President Roosevelt fired Humphrey, he had good reason to think he stood on firm legal ground. To be sure, Congress had imposed statutory restrictions on his removal authority and the President had not even pretended to comply with those restrictions when he dismissed Humphrey. But less than a decade earlier, this Court had held in *Myers* v. *United States*, 272 U. S. 52 (1926), that Article II of the Constitution extends to the President the power, unbounded by contrary statutes, to remove presidentially appointed officers like Humphrey. See *id.*, at 163–176.

As it turned out, the President's expectations proved misplaced. When Humphrey sued to challenge his dismissal, this Court brushed *Myers* aside, upheld Congress's removal restrictions, and declared Humphrey's firing unlawful even though he was in no position to reclaim his post. He died during the course of the litigation, leaving his heirs as the only immediate winners; the decision paved the way for them to secure his backpay. See *Humphrey's*, 295 U. S., at 618, 632. But the broader implications of the Court's decision were unmistakable and met with mixed reactions. James Landis greeted the decision with "deligh[t]." J. Landis, Mr. Justice Brandeis: A Law Clerk's View, 46 Publications of the Am. Jewish Hist. Soc. 467, 472 (1957). No wonder. The Supreme Court, after all, had just signed off on at least one aspect of his new model of public administration by permitting Congress to insulate agency leaders from direct presidential control. Meanwhile, and for exactly the same reason, President Roosevelt reportedly "saw in the decision the most direct of all possible trespasses on his powers as Chief Executive" and "was completely infuriated." J. Alsop & T. Catledge, The 168 Days 14 (1938). So much so that "[i]t may very well have been [*Humphrey's*], even more than the other decisions of 1935, which provided the motive for" President

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Roosevelt's subsequent attempt to pack the Court. R. Tugwell, The Democratic Roosevelt 392 (1957).

But if *Humphrey's* invited very different reactions, there was perhaps one thing nearly everyone could agree on. After the Court's ruling, Congress rolled out one new "independent" agency after another. Of course, the term "independent" was always a bit of a misnomer. As we've seen, these agencies were never truly independent from politics or even the influence of the President's appointment powers. But the leadership of these new agencies at least enjoyed protection against at-will presidential removal. And Congress turned out so many new independent agencies that a committee President Roosevelt assembled a few years later complained of the rise of a new "headless 'fourth branch' of the Government, a haphazard deposit of irresponsible agencies and uncoordinated powers," one that did "violence to the basic theory of the American Constitution." President's Committee on Administrative Management, Report on Administrative Management in the Government of the United States 36 (1937) (Roosevelt Committee). In all, the Committee found, Congress had already created "a dozen" agencies "independent" of the President. *Id.*, at 36, 40; see also Investigation of Executive Agencies of the Government, 75th Cong., 1st Sess., 85 (S. Comm. Print 1937, prepared by the Brookings Inst.) (describing "vast and extremely important fields of Government activity almost removed from the President's direct administrative control").

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D

Congress's newfound ability to insulate agencies from direct presidential control may have encouraged it to lean into the last essential pillar of Wilson's design too. In *Humphrey's* wake, Congress increasingly assigned broad powers to the agencies it created, including legislative and judicial powers. Before *Humphrey's*, delegating those sorts of authorities to an agency risked "merely increasing" the Presi-

dent's own power—he might remove agency heads and seek new ones who would do his bidding. Landis 46; see also I. Sharfman, The Interstate Commerce Commission: A Study in Administrative Law and Procedure, pt. 2, p. 453 (1931). But *Humphrey's* changed the equation, making independent agencies more tempting repositories for delegated powers that the President could not access with quite such ease.

The result? Independent agencies today hold tremendous sway over the Nation's affairs. They regulate our businesses, 15 U. S. C. §57a, and our financial markets, §78w. They set the rules for the internet and airwaves. 47 U. S. C. §303. They decide how we light our homes, 42 U. S. C. §§7171–7172, how we run our elections, 52 U. S. C. §30106, and the manner of our employment, 29 U. S. C. §§153, 160. They determine what toys our children will play with, 15 U. S. C. §§2063(a)(2), (3), (d)(2), and how we interact with each other at work, 42 U. S. C. §2000e–5. And, as the dissent explains, so much more. See *post*, at 516 (opinion of SOTOMAYOR, J.).[1]

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Often, these agencies do all this with hardly any statutory guidance, based on broad grants of legislative authority. The FTC, for example, enjoys what the Court calls the "startlin[g]" power to define, outlaw, and prosecute any "'acts or practices which are unfair or deceptive.'" *Ante*, at 454 (quoting 15 U. S. C. §57a(a)(1)(B)). The Securities and Exchange Commission (SEC) may "make such rules and regulations as may be necessary or appropriate to implement," 15 U. S. C. §78w(a)(1), its mandate "to insure the maintenance of fair and honest markets," §78b. The Federal Communications

[1] Some of these agencies, like the Securities and Exchange Commission and the Federal Election Commission, do not even have formal statutory removal protections. But in practice, that has generally proved no bar to their independence until today. See, *e. g.*, *PHH Corp.* v. *Consumer Financial Protection Bureau*, 881 F. 3d 75, 90 (CADC 2018) (en banc) (taking for granted the "traditional for-cause protection enjoyed by the SEC Commissioners").

Commission (FCC) has "exclusive authority to grant licenses" to broadcasters "based on 'public convenience, interest, or necessity.'" *Metro Broadcasting, Inc.* v. *FCC*, 497 U. S. 547, 553 (1990) (quoting 47 U. S. C. §303). One could go on.

Nor have these agencies hesitated to employ the powers Congress has given them. Take a few examples from just the past two years. In 2024, the SEC took on climate change. See 89 Fed. Reg. 21668, 21683 (requiring "Climate-Related Disclosures" in SEC filings). That same year, the FTC sought to ban nearly all employee noncompete agreements nationwide. *Id.*, at 38342. And then there's late-night comedy. Last year, taking objection to a network host's on-air remarks, the Chairman of the FCC suggested there would be "additional work . . . ahead" for the agency if broadcasting companies did not "find ways to . . . take action." The Benny Show, Sept. 17, 2025 ("[W]e can do this the easy way or the hard way").

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Some independent agencies even have *de facto* authority to create new crimes. By the 1990s, one scholar estimated that "over 300,000 federal regulations," many of them adopted by independent agencies, "may be enforced criminally." J. Coffee, Jr., Does "Unlawful" Mean "Criminal"?: Reflections on the Disappearing Tort/Crime Distinction in American Law, 71 B. U. L. Rev. 193, 216 (1991). More recent and exact totals are hard to come by—some say there may be simply too many regulatory crimes to count. See *id.*, at 218.

Over time, Congress has afforded agencies not just sweeping legislative powers but judicial ones as well, including the power to decide cases and controversies affecting Americans' private rights. We have recently begun addressing whether some of these schemes comply with Article III's assurance of an independent judge, the Seventh Amendment's promise of a jury trial, and the Due Process Clause's guarantee of a fair trial before a fair tribunal. See *SEC* v. *Jarkesy*, 603 U. S. 109, 123–126 (2024); see also *id.*, at 141 (GORSUCH, J.,

concurring). Even so, certain of those schemes persist. See, *e. g.*, *Atlas Roofing Co.* v. *Occupational Safety and Health Review Comm'n*, 430 U. S. 442, 447–450, 461 (1977).

Would Congress have gone so far down this road, delegating so much legislative and judicial power to agencies, without *Humphrey's* assurance that their leaders would enjoy protection against at-will presidential removal? Maybe. After all, Congress has also granted expansive authorities to various "executive" agencies whose heads have been subject to at-will presidential removal all along. But very possibly not. *Humphrey's* itself described removal protections as "essential" to the FTC's structure. 295 U. S., at 625. Ms. Slaughter cites evidence that "'[a]t no point was it proposed that [an FTC] ought to be set up unless it be independent.'" Brief for Respondent 5 (quoting R. Cushman, The Independent Regulatory Commissions 188 (1941)). Over the years, many commentators have offered similar assessments. See, *e.g.*, Landis 111 (noting "a correlation between the creation of the independent agency and broad grants of administrative power"); M. Bernstein, Regulating Business by Independent Commission 148–149 (1955) (observing that many delegations "might not have been enacted if Congress had not been able to delegate regulatory duties to agencies somewhat removed from continuing presidential guidance"). My dissenting colleagues share the same view too. See *post*, at 513–515.

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II

A

The Court's decision today may take aim at removal protections and, in that way, one part of Wilson's vision. But, as we have seen, other parts never fully materialized. It was never the case that neutral experts alone led the agencies Congress created. And it was never true that those agencies were entirely insulated from politics or even presidential influence. Nor can the demise of one more vestige of Wilson's ambitions come as a surprise. As the Court per-

suasively explains, *Myers* was right all along and so was President Roosevelt: *Humphrey's* did "violence to the basic theory of the American Constitution," which leaves no room for a "headless 'fourth branch.'" Roosevelt Committee 36. Instead, those who exercise executive power must be accountable through a "chain of dependence" running from the "lowest officers" to "the President," and from him to the sovereign American people. 1 Annals of Cong. 499 (1789) (J. Madison). As even Wilson and Landis acknowledged, their plans for a new scheme of "public administration" always stood in more than a little tension with the Constitution's design.

But if today's decision represents an important step back toward the Constitution, it's also worth considering the implications it holds for the last remaining pillar of Wilson's plan. Apparently relying on the assumption that it can afford their leaders some protection against presidential removal, Congress has not just assigned executive law-enforcement power to independent agencies. It has delegated extensive lawmaking and adjudicative functions to them as well. Today's decision may not have occasion to address those delegations directly, but it carries weighty consequences for them. Open-ended delegations of legislative power have not gone away; now they will just be exercised by agency officials who answer to the President. The power to write new regulatory crimes still exists, but now the pen ultimately rests in the President's hand. The ability to judge disputes in-house remains, but now the house is white.

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The whole of the President's authority also may be greater than the sum of its parts. It would be one thing if today's decision afforded the White House more control over the airwaves. Or financial markets. Or energy. But Presidents now will enjoy waxing authority over all those areas and more. A business out of favor with the party in control of the White House might be able to stave off an FCC investigation. But can it survive a subsequent FTC rule declaring

unlawful one of its longstanding trade practices? What about an in-house adjudication by OSHA? Or a prosecution for a new crime the SEC announces? Not to mention what these now-coordinated powers could do to disfavored individuals who lack the resources needed to fend off such attacks. It may be true that after today there is no more "fourth branch" of government. But the fourth branch's powers still exist; they have just been reassigned to the President.

If all that weren't enough, Presidents have many other ways to consolidate their influence over agencies—both traditional executive agencies and now-formerly independent ones. Take just a couple examples. For decades, Presidents have employed the Office of Information and Regulatory Affairs (OIRA) to oversee proposed executive agency actions that carry significant economic impacts. See, *e. g.*, Exec. Order No. 12291, 3 CFR 127 (1981 Comp.); Exec. Order No. 12866, 3 CFR 638 (1993 Comp.). And even before today's decision, the President has extended OIRA review to many independent agencies. Exec. Order No. 14215, 90 Fed. Reg. 10447 (2025). Separately, Presidents can sometimes adjust the reach of the civil service laws. While those laws ordinarily afford rank-and-file agency employees considerable protection against removal, see 5 U. S. C. §§ 7511–7513, they do not apply to certain employees who hold positions "of a confidential, policy-determining, policy-making or policy-advocating character," § 7511(b)(2). And by classifying more and more positions as subject to this exception, Presidents can seek to exert greater control over not just agency leaders but their subordinates as well. See, *e. g.*, 91 Fed. Reg. 5580, 5628, 5650 (2026) (subjecting "tens of thousands" of additional positions, in both executive and independent agencies, to this exception).

So, yes, those who exercise executive power must be ultimately answerable to the President and, through him, to the American people. But while electoral accountability is a good thing, it cannot be the only thing. And allowing Presi-

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dents to control not only executive functions, but also vast new reservoirs of legislative and judicial powers, risks inviting exactly what those who framed our Constitution feared: the "accumulation of all powers . . . in the same hands, whether of one, a few or many, and whether hereditary, self appointed, *or elective*." The Federalist No. 47, p. 324 (J. Cooke ed. 1961) (J. Madison) (emphasis added). No nation, after all, can expect happy results when "the legislative and executive powers are united in the same person"—or, one might add, when judicial powers are added to that union. *Id.*, at 325 (internal quotation marks omitted).

B

If allowing so much legislative and judicial power to accumulate in the President's hands invites real risks, the question becomes: Who will address them?

At first blush, the most natural answer might seem Congress. Aware now that the premise on which it apparently proceeded was flawed—independent agencies are not so independent after all—Congress might wish to reconsider how much power should remain in the President's hands. But if that seems a straightforward solution, there's a straightforward problem with it. Of course, Congress still possesses tools—most notably its appropriations authority—to "influence how the President exercises" his legislative and judicial functions. *Learning Resources* v. *Trump*, 607 U. S. 229, 271 (2026) (GORSUCH, J., concurring). But "[a]ny President keen on his own authority . . . will have a strong incentive to veto" any effort to reclaim those powers. *Id.*, at 270–271. The consequence is a ratchet effect: Authorities Congress once delegated by a simple majority may now require a veto-proof supermajority to retrieve.

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Perhaps, then, if any real response is to come it will have to come from this Court. And that's hardly unfair. To be sure, Congress had a hand in creating the problem we now face. But this Court bears responsibility as well. It was

this Court that decided *Humphrey's*. It was this Court that sat by while Congress delegated vast legislative and judicial powers to one independent agency after another. And it is this Court that today allows the President to remove those agencies' leaders and exercise effective control over all their powers. If the task of fixing a problem belongs to those who made it, this Court has some work to do.

Fortunately, the Constitution provides the blueprint for the job ahead. That charter provides a far surer and more democratically legitimate scheme of "public administration" than anything Wilson conjured up. With the assent of the governed, and subject to amendment by them alone, our Constitution created three branches of government—not four, and not just one led by the President either. Each branch bears the authority and responsibility to exercise distinct powers. Congress must make the laws that govern us, the executive branch must faithfully execute those laws, and independent judges and juries must decide disputes that arise under them.

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Fortunately, too, this Court already has many doctrines designed to protect the Constitution's separation of powers. Just as today's decision holds that Article II requires those who exercise executive power to answer to an elected President, this Court's nondelegation doctrine recognizes that Article I vests "[a]ll" federal legislative power in Congress and no one else. See Art. I, § 1. Of course, Congress can enlist experts to advise it in its work and leave implementation details to others, but the doctrine holds that Congress alone can make laws regulating private conduct. See, *e. g.*, *Panama Refining Co.* v. *Ryan*, 293 U. S. 388 (1935). By that doctrine's side stands the major questions doctrine, which teaches that, to sustain a claim that Congress has delegated to it some "[e]xtraordinary" regulatory power, an agency must identify "clear" statutory authority for that power. *West Virginia* v. *EPA*, 597 U. S. 697, 723 (2022) (internal quotation marks omitted). Vagueness doctrine can contribute

too, with its lesson that "Congress, rather than the executive or judicial branch, [must] define what conduct is sanctionable and what is not." *Sessions* v. *Dimaya*, 584 U. S. 148, 156 (2018) (opinion of KAGAN, J.). And our doctrines addressing Article III, the Due Process Clause, and the Seventh Amendment can help ensure that adjudications of private rights take place where they belong, before independent judges and juries. See *Jarkesy*, 603 U. S., at 141 (GORSUCH, J., concurring).

We have, then, no shortage of tools. The only real question is whether we will use them. Yes, we often recite, the Constitution contains "a bar on [the] delegation" of "[l]egislative power" to agencies. *FCC* v. *Consumers' Research*, 606 U. S. 656, 672 (2025). But we have sometimes shrunk from applying that rule, worried that "our increasingly complex society" cannot manage unless someone else assumes Congress's job of making the laws that govern us. *Mistretta* v. *United States*, 488 U. S. 361, 372 (1989). Yes, we say, when agencies claim "[e]xtraordinary" delegated power, they "must point to clear congressional authorization for" it. *West Virginia*, 597 U. S., at 723 (internal quotation marks omitted). But some have also suggested the major questions doctrine might be tainted by an "anti-administrative-state stance," one that could prevent the "people . . . found in agencies" "from doing important work." *Id.*, at 779–781 (KAGAN, J., dissenting). And, yes, all agree that the Seventh Amendment guarantees a jury in suits at common law. But it can also seem to some that Congress occasionally has "good reaso[n]" to let agencies decide cases anyway given their "greater efficiency and expertise." *Jarkesy*, 603 U. S., at 202 (SOTOMAYOR, J., dissenting).

Whatever merit these objections once might have held, they now speak to a bygone era. As my dissenting colleagues see it, removal protections were "centrally important," or perhaps even " 'essential,' " to Congress when it decided to create so many independent agencies and delegate

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so much legislative and judicial power to them. *Post*, at 514 (quoting *Humphrey's*, 295 U. S., at 625). On their account, Congress gave all that power to "specialists" in independent agencies "precisely because [they were] not fully controlled by the White House." *Trump* v. *Wilcox*, 605 U. S. 922, 928 (2025) (KAGAN, J., dissenting from grant of application for stay). But now removal protections are a thing of the past, and the President enjoys direct control over independent and executive agencies alike. So even if entrusting legislative and judicial powers to insulated, independent agencies once seemed a good idea to some, it's simply not an option anymore. Now, we face only two ways forward: Let Presidents exercise all those powers or begin subjecting them to the Constitution's constraints.

*

The Court today takes a notable step back toward the Constitution. By recognizing that the President is entitled to remove a principal officer who exercises executive power in his name, the Court does much to vindicate what Franklin D. Roosevelt and James Madison both understood: Under our Constitution, executive power does not belong to a "headless 'fourth branch,'" Roosevelt Committee 36, but must be exercised through a "chain of dependence" running from "the lowest officers" to "the President," and from him to the American people, 1 Annals of Cong. 499 (J. Madison).

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At the same time, it would be a grave mistake to think that step is enough on its own. The fact remains that Congress has endowed formerly independent agencies not just with executive authority, but with enormous legislative and judicial powers as well. And now the President enjoys control over all those powers too. From here, the only sure path is to finish the journey we start today and restore legislative and judicial powers to where they belong: in Congress and the courts. We have tolerated adventurous theories long enough. It is time to return, all the way, to the Constitution.